ORDINANCE NO. 24-008Z
Town of North Providence
AN ORDINANCE AMENDING
CHAPTER 35 ZONING
The text below in underline is text to be added to the zoning code.
The text below in ~~strikethrough~~ is removed from the zoning code.

Article XIII – Definitions

Adaptive reuse. The conversion of an existing structure from the use for which it was constructed to a new use by maintaining the elements of the structure and adapting such elements to a new use.

Variance - Permission to depart from the literal requirements of a zoning ordinance. An authorization for the construction or maintenance of a building or structure, or for the establishment or maintenance of a use of land, which is prohibited by a zoning ordinance. There shall be only two (2) categories of variance, a use variance or a dimensional variance.

(a) Use variance -Permission to depart from the use requirements of a zoning ordinance where the applicant for the requested variance has shown by evidence upon the record that the subject land or structure cannot yield any beneficial use if it is to conform to the provisions of the zoning ordinance.

(b) Dimensional Variance - ~~Permission to depart from the dimensional requirements of a zoning ordinance, where the applicant for the requested relief has shown, by evidence upon the record, that there is no other reasonable alternative way to enjoy a legally permitted beneficial use of the subject property unless granted the requested relief from the dimensional regulations. The fact that a use may be more profitable or that a structure may be more valuable after the relief is granted shall not be grounds for relief.~~ Permission to depart from the dimensional requirements of this zoning ordinance under the applicable standards set forth in R.I.G.L. § 45-24-41.

Development Plan Review - ~~The process whereby authorized local officials review the site plans, maps, and other documentation of a development to determine the compliance with the stated purposes and standards of the ordinance.~~ Design or site plan review of a development of a permitted use. A municipality may utilize development plan review under limited circumstances to encourage development to comply with design and/or performance standards of the community under specific and objective guidelines, for developments including, but not limited to:

- A change in use at the property where no extensive construction of improvements is sought.
- An adaptive reuse project located in a commercial zone where no extensive exterior construction of improvements is sought.
- An adaptive reuse project located in a residential zone which results in less than nine (9) residential units.
- Development in a designated urban or growth center.
- Institutional development design review for educational or hospital facilities.
- Development in a historic district.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: August 6, 2024

Approved: August 7, 2024

Council President

Mayor

Town Clerk